

Judicial Council Act, 2016

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Amending Act

1. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act Number 8 of the year 2073

An Act Made to Amend and Consolidate Laws Relating to the Functions, Duties and Powers of the Judicial Council

Preamble: Whereas, it is desirable to amend and consolidate the prevailing laws relating to the functions, duties and powers of the Judicial Council in relation to making recommendations or giving advice on matters relating to appointment, transfer, disciplinary action, removal of judges and other matters relating to judicial administration;

Now, therefore, the Legislature-Parliament pursuant to clause (1) of Article 216 of the Constitution of Nepal has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the ?Judicial Council Act, 2073.?

(2) This Act shall commence on such date as the Government of Nepal may, by notification in the Nepal Gazette, appoint. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) ?Court? means the Supreme Court, High Court and District Court.

(b) ?Chairperson? means the Chairperson of the Judicial Council.

(c) ?Inquiry Committee? means the Inquiry Committee constituted pursuant to Section 19.

(d) ?Prescribed? or ?as prescribed? means prescribed or as prescribed in the rules framed under this Act.

(e) ?Judicial Council? means the Judicial Council pursuant to Article 153 of the Constitution.

(f) ?Judge? means a Judge of a Court.

(g) ?Member? means a Member of the Judicial Council and such term also includes the Chairperson of the Judicial Council.

(h) ?Constitution? means the Constitution of Nepal. 3.

Preparation of Record: (1) The Judicial Council shall prepare and maintain a record of Nepali citizens who are qualified to be appointed to the post of Judge pursuant to the Constitution. (2) For the purpose of subsection (1), the Judicial Council may request details of persons qualified to be appointed to the post of Judge pursuant to the Constitution from the Supreme Court, Judicial Service Commission, Ministry of Law, Justice and Parliamentary Affairs, Office of the Attorney General, Nepal Legal Practitioners Council and other appropriate bodies. (3) In addition to the details obtained pursuant to subsection (2), the Judicial Council shall, by publishing a public notice, collect details of persons qualified to be appointed to the post of Judge pursuant to the Constitution and persons who were appointed as a Judge of any Court or an Additional Judge

of an Appellate Court and served before the commencement of this Act and who may be appointed to the post of Judge pursuant to the Constitution. (4) The record pursuant to this section shall remain in the custody of the Secretary of the Judicial Council. (5) The record pursuant to this section shall be confidential and shall not be used for any purpose other than the work of the Judicial Council. (6) Other provisions relating to keeping the record pursuant to this section shall be as prescribed. 4. Period for Recommendation for Appointment: (1) The Judicial Council shall identify the post of a Judge of the Supreme Court who is due to retire on account of age limit and shall make a recommendation for appointment at least one month before such post becomes vacant. (2) If the post of a Judge of the Supreme Court becomes vacant due to reasons other than retirement on account of age limit, the Judicial Council shall make a recommendation for appointment within one month from the date of such vacancy. (3) If the post of the Chief Judge or Judge of a High Court becomes vacant, the Judicial Council shall make a recommendation for appointment within three months from the date of such vacancy. 5.

Basis for Recommendation for Appointment: (1) Subject to the Constitution, the Judicial Council shall, in accordance with the principle of proportional inclusivity, recommend any Nepali citizen for appointment to the post of Judge on the following basis:- (a) Being qualified to be appointed to the post of Judge pursuant to the Constitution and this Act, (b) Being suitable for appointment to the post of Judge from the perspective of seniority, experience, knowledge of subject matter, efficiency, honesty, impartiality, professional and ethical conduct, reputation gained in public life, contribution made in the field of justice and law, (c) Having the name included in the record pursuant to Section 3, (d) In the case of a District Judge to be appointed pursuant to clause (b) or (c) of subsection (2) of Article 149 of the Constitution, having been recommended by the Judicial Service Commission pursuant to subsection (3) of the same Article. (2) Notwithstanding anything contained in clause (c) of subsection (1), mere non-inclusion of the name in the record pursuant to Section 3 shall not prevent that person from being appointed to the post of Judge. (3) While recommending a person who is holding the post of Judge or has worked as a Judge of any Court or Additional Judge of an Appellate Court or an officer of the Judicial Service for appointment to the post of Judge of the Supreme Court or High Court, in addition to the grounds mentioned in subsection (1), the Judicial Council shall also consider the following matters:- (a) Matters mentioned in the evaluation report submitted by the Supreme Court or High Court after periodic or urgent inspection of subordinate courts regarding the person sought to be recommended for appointment, (b) Seniority, qualification and performance evaluation of the concerned person, (c) In case of a serving Judge of a High Court or District Court or a person who has worked as a Judge of any Court or Additional Judge of an Appellate Court, the proportion of cases decided by him/her annually and the details of cases affirmed, partially reversed or fully reversed upon final decision by the higher court in proportion to the cases decided by him/her.

Provided that, in the case of a person who has worked as a Judge or Additional Judge of an Appellate Court, while determining the proportion of cases decided annually, the proportion of cases decided by him/her during the period of working as a Judge shall be determined.

(4) While recommending any legal practitioner or a person who has worked in the field of justice and law for appointment to the post of Judge, in addition to the matters mentioned in subsection (1), the Judicial Council shall also consider the professional continuity, evaluation of contribution made in the field of justice and law, and any details relating to his/her previous service, if any.

(5) For the purpose of clause (b) of subsection (1) and subsection (3), the Judicial Council may call for and examine inspection reports, performance reports or evaluations and other details relating to service from the concerned Court or Office. 6. Forwarding for Parliamentary Hearing: (1) If the Judicial Council recommends any person for appointment to the post of Judge of the Supreme Court, the Secretary of the Judicial Council

shall send such recommendation to Amended by the Some Nepal Acts Amendment Act, 2082. the Federal Parliament Secretariat for parliamentary hearing to be held pursuant to Article 292 of the Constitution.

(2) In case the person recommended for appointment to the post of Judge of the Supreme Court has been sent for parliamentary hearing pursuant to subsection (1), and upon receiving a letter from Amended by the Some Nepal Acts Amendment Act, 2082. the Federal Parliament Secretariat stating that the person has been found qualified for appointment to the post of Judge of the Supreme Court after the parliamentary hearing, or in a situation where no decision on such hearing has been made and there is no legal impediment to the appointment pursuant to prevailing law, the Secretary of the Judicial Council shall forward the matter to the Office of the President for submission to the President for appointment. 7.

Persons Ineligible for Appointment to the Post of Judge: The following person shall not be eligible for appointment to the post of Judge:- (a) Who has been punished by a court for corruption, rape, human trafficking and transportation, sale and distribution or trafficking of narcotic drugs, money laundering, misuse of passport, abduction or other criminal offenses involving moral turpitude, (b) Who has not completed two years after being punished by the concerned body for violation of the professional code of conduct, (c) Who has been subjected to departmental punishment resulting in dismissal from service with disqualification for future service in any government or public institution, (d) Who has been warned pursuant to the law relating to the concerned service, if one year has not elapsed since such warning, or if promotion or salary increment has been stopped, the period of such stoppage has not elapsed, (e) Who is disqualified pursuant to Article 291 of the Constitution, (f) Who is under suspension pursuant to prevailing federal law, (g) Who has not completed two years from the date of being cautioned pursuant to Section 14, (h) Who is blacklisted pursuant to prevailing law, (i) Who is a member of any political party at the time of appointment, (j) Who is insolvent, or (k) Who is of unsound mind. 8. Provisions Relating to Filling of Posts of District Judges: (1) The Judicial Council shall fill vacant posts of Judges in District Courts pursuant to subsection (2) of Article 149 of the Constitution. (2) For the purpose of filling posts pursuant to subsection (1), the Judicial Council shall identify the currently vacant posts of District Judges and the posts expected to become vacant by the end of the month of Chaitra each year, and determine the percentage of filling posts pursuant to clauses (a), (b) and (c) of subsection (2) of Article 149 of the Constitution. (3) After the percentage is determined pursuant to subsection (2), the Judicial Council shall send a letter to the Judicial Service Commission to select and recommend suitable persons for the posts of District Judges to be filled pursuant to clauses (b) and (c) of subsection (2) of Article 149 of the Constitution. (4) The Judicial Council shall prepare a timeline for filling the posts of District Judges pursuant to this section by the end of the month of Chaitra each year. 9. Persons Ineligible to be Candidates: A person who is ineligible for appointment to the post of Judge pursuant to Section 7 shall not be a candidate in the examination taken for filling the posts of District Judges pursuant to subsection (2) of Article 149 of the Constitution. 10.

Lack of Competence: A Judge shall be deemed to lack competence in the following circumstances:- (a) If he/she fails to conduct proceedings and dispose of cases within the period prescribed by law without reasonable cause, (b) If he/she unnecessarily prolongs a case by not passing orders or decisions that could be passed at once, or by adjourning cases that should not be adjourned according to law, or by not taking up adjourned cases, or by making irrelevant or illegal proceedings or orders, (c) If he/she performs work at a lower rate than naturally expected while conducting proceedings and disposing of cases, (d) If he/she conducts proceedings and disposes of cases by applying irrelevant law or by making a different interpretation or meaning neglecting the clear and unambiguous interpretation or meaning of the law, (e) If he/she maintains different opinions and conducts proceedings or makes decisions in different cases involving the same legal question: Provided that this clause shall not apply if he/she changes his/her opinion by stating the

basis and reason considering that the opinion previously expressed in a case was erroneous. (f) If he/she avoids doing work that ought to be done on the day of summoning the parties or on the date fixed without reasonable cause, (g) If he/she, while ordering the taking of evidence, orders only the taking of evidence without clarifying the facts or issues that are admitted or disputed by the parties, (h) If he/she makes a decision contrary to the legal principle propounded by the Supreme Court, or Provided that this clause shall not apply where uniformity or certainty in the legal principle propounded by the Supreme Court has not been established. (i) If he/she does any other act that proves that he/she does not have the level of competence expected to perform his/her official duties. 11.

Bad Conduct or Serious Violation of Code of Conduct: (1) A Judge shall be deemed to have engaged in bad conduct in the following circumstances:- (a) If he/she commits corruption, rape, human trafficking and transportation, sale and distribution or trafficking of narcotic drugs, money laundering, misuse of passport, abduction or other criminal offenses involving moral turpitude, (b) If he/she uses narcotic drugs, (c) If he/she consumes intoxicating substances during court hours, (d) If he/she engages in rude or disorderly behavior in a public place or ceremony, (e) If he/she participates in politics: Provided that exercising the right to vote according to law shall not be deemed to be participating in politics. (f) If he/she conducts proceedings and disposes of cases under undue influence or contrary to law, (g) If he/she misuses government or public property or any facility obtained by him/her, or (h) If he/she engages in any conduct while on the bench that degrades the dignity of the court or is contrary to official discipline or dignity. (2) If a Judge commits an act that amounts to a serious violation of the code of conduct framed under this Act, or repeatedly violates such code of conduct, he/she shall be deemed to have committed a serious violation of the code of conduct. 12.

Failure to Perform Duty Honestly or Acting with Malafide Intention: A Judge shall be deemed to have failed to perform his/her duty honestly or acted with malafide intention in the following circumstances:- (a) If he/she does any act with the intention of avoiding, prolonging or unduly influencing a case, (b) If he/she fails to sit on the bench or hear cases within the prescribed time without reasonable cause, (c) If he/she fails to write a judgment or order within the prescribed time without reasonable cause, (d) If he/she repeatedly remains absent from the court without obtaining leave, or (e) If he/she fails to comply, within a reasonable period, with an order given by a higher court or a directive given by the Chief Justice, Chief Judge of a High Court or inspecting judge on administrative matters. 13.

Deemed Incapable of Performing Work: (1) To ascertain whether a Judge is incapable of performing work while in service due to physical or mental illness pursuant to clause (d) of Article 131, clause (d) of subsection (1) of Article 142 or clause (d) of subsection (6) of Article 149 of the Constitution, the Judicial Council shall send a letter to the Medical Board constituted by the Government of Nepal. (2) If the Medical Board recommends that a Judge is incapable of performing work due to physical or mental reasons upon sending a letter pursuant to subsection (1), such Judge shall be deemed to be physically or mentally incapable of performing work. (3) If a Judge refuses to undergo physical or mental examination by the Medical Board pursuant to this section, he/she shall be deemed to be physically or mentally incapable of performing work. (4) For removal of a Judge deemed physically or mentally incapable of performing work pursuant to subsection (2), the Judicial Council shall recommend to the Chief Justice: Provided that, in the case of a Judge of the Supreme Court, it shall be done pursuant to clause (d) of Article 131 of the Constitution. 14.

Taking Action: (1) In the circumstances under Section 10 or 12, the Judicial Council may, for the first time, caution the concerned Judge. (2) If the situation under Section 10 or 12 does not improve despite cautioning pursuant to subsection (1), or if the Judge engages in bad conduct or serious violation of the code of conduct under Section 11, the Judicial Council shall take action against such Judge pursuant to clause (c) of subsection (1) of Article 142 or clause (c) of subsection (6) of Article 149 of the Constitution: Provided that, in

the case of a Judge of the Supreme Court, it shall be done pursuant to Article 131 of the Constitution. 15.

Provisions Relating to Inspection: (1) The Chief Judge of a High Court shall inspect the work of the Judges of the concerned High Court or subordinate District Courts each year and submit a report to the Judicial Council. (2) The report pursuant to subsection (1) shall, in addition to other matters, include the following details:- (a) Details of the annual attendance of the concerned Judge at the place where he/she is assigned, (b) Details of judgments delivered by the Judge during the year in proportion to the number of cases in the concerned court, (c) Details of whether the judgments delivered by the concerned Judge were affirmed or reversed by the higher court, (d) Details of other work relating to court management and operation. (3) The Judicial Council may rely on the report pursuant to subsection (1) while evaluating or taking action against a Judge. (4) Other provisions relating to inspection shall be as prescribed. 16. **Provisions Relating to Monitoring and Surveillance:** (1) The Judicial Council may form a one or three member Judicial Monitoring and Surveillance Committee under the chairpersonship of any Member of the Judicial Council to regularly monitor or keep surveillance on the work and conduct of Judges. (2) The Secretary of the Judicial Council shall act as the Secretary of the Committee pursuant to subsection (1). (3) The Committee formed pursuant to subsection (1) may monitor or keep surveillance on whether a Judge has performed his/her duties or official conduct as required by the Constitution and law, or on other work specified by the Judicial Council. (4) For the purpose of subsection (3), the Committee may, as required, ascertain the views of the concerned Chief Judge of the High Court, other Judges of the court where the concerned Judge is serving, employees, legal practitioners practicing in such court, or service recipients regarding the concerned Judge. (5) While performing monitoring and surveillance work pursuant to subsection (3), the Judicial Monitoring and Surveillance Committee may, as required, take the assistance of gazetted employees of the Judicial Council. (6) While performing monitoring and surveillance work pursuant to subsection (3), it shall be done confidentially. (7) The Judicial Monitoring and Surveillance Committee shall submit a report of its work to the Judicial Council within the period specified by the Judicial Council. (8) The Judicial Council may rely on the report pursuant to subsection (7) while evaluating or taking action against a Judge. 17.

Study of Cases Related to Complaints: (1) If a complaint is lodged with the Judicial Council against any Judge regarding any case, the Judicial Council may designate any Member to study such case. (2) For the purpose of subsection (1), the concerned court shall make available the documents or files requested by the Member. (3) The Member designated pursuant to subsection (1) shall study the case related to the complaint and submit a report with his/her opinion to the Judicial Council within the period specified by the Judicial Council. 18. **Preliminary Inquiry:** (1) Based on a complaint received by the Judicial Council or a monitoring or inspection report, or if the Judicial Council itself deems it necessary to inquire against any Judge of a High Court or District Court, the Judicial Council may designate any Member or any Judge of the Supreme Court to conduct a preliminary inquiry thereof. (2) The Member or Judge designated pursuant to subsection (1) may interrogate the concerned Judge or other related persons. (3) The Member or Judge designated pursuant to subsection (1) may request any document related to the subject of preliminary inquiry. It shall be the duty of such court or body to make available the document requested accordingly. (4) The Member or Judge designated pursuant to subsection (1) shall submit a preliminary inquiry report with his/her opinion to the Judicial Council within the period specified by the Judicial Council. 19. **Inquiry Committee:** (1) If, from the report received pursuant to Section 17 or 18, or if the Judicial Council itself deems it necessary to cause an inquiry against any Judge of a High Court or District Court, the Judicial Council shall form a three-member Inquiry Committee including an expert in the related field under the chairpersonship of any Member of the Judicial Council or a Judge of the Supreme Court, and publish a notice thereof in the Nepal Gazette. (2) The Inquiry Committee shall complete the inquiry and submit a report to the Judicial Council within the period

specified by the Judicial Council. (3) The office of the Inquiry Committee shall be at the Secretariat of the Judicial Council, and the Judicial Council shall provide the necessary employees and resources for the Inquiry Committee. (4) The work of Secretary of the Inquiry Committee shall be performed by the Secretary of the Judicial Council or a gazetted officer of the Federal Judicial Service designated by the Judicial Council. 20.

Powers of the Inquiry Committee: (1) The Inquiry Committee may exercise the powers exercised by a Commission formed under the Commission of Inquiry Act, 2026 in relation to giving notice, serving notice, taking statements or examining witnesses and evidence against the Judge of a High Court or District Court sought to be inquired into. (2) The work of the Inquiry Committee under this section shall be confidential. (3) The Inquiry Committee shall not permit any person other than the Judge of the High Court or District Court against whom allegations are made, the concerned legal practitioners and the complainant to be present or participate in the proceedings at the place where the inquiry proceedings are held. (4) Any person who disobeys an order given by the Inquiry Committee or obstructs the inquiry proceedings may be punished by the Inquiry Committee with a fine of up to three thousand rupees or imprisonment for up to one month or both. (5) Before the Inquiry Committee passes an order of punishment pursuant to subsection (4), the concerned person may apologize before the Inquiry Committee. If the Inquiry Committee is satisfied with such apology, the Inquiry Committee shall not impose any punishment. (6) If a person punished by the Inquiry Committee pursuant to subsection (4) submits an apology satisfactory to the Inquiry Committee, the Inquiry Committee may refrain from executing the punishment imposed by it. (7) After the completion of the inquiry work, the Inquiry Committee shall submit the inquiry report with its opinion and the documents related thereto to the Secretariat of the Judicial Council. 21. Providing an Opportunity to Explain: (1) If, upon studying the report received pursuant to Section 17, 18 or 19, it appears necessary to take action against the accused Judge of a High Court or District Court pursuant to the Constitution, this Act or other prevailing law, the Judicial Council shall state the reasons and grounds and provide an opportunity to submit an explanation within a reasonable period. (2) If no explanation is submitted within the period pursuant to subsection (1), or if the explanation submitted is not found satisfactory, the Judicial Council shall impose any punishment under this Act or recommend to the Chief Justice to take action against the accused Judge of a High Court or District Court pursuant to clause (c) of subsection (1) of Article 142 and clause (c) of subsection (6) of Article 149 of the Constitution: Provided that, if a case is to be filed pursuant to prevailing law, a letter shall be sent to the concerned body to file a case according to law. 22.

Investigation and Filing of Case for Corruption Offense: (1) For the purpose of investigation into the matter pursuant to subsection (6) of Article 153 of the Constitution, the Judicial Council shall designate any Judge of the Supreme Court or High Court to act as Investigating Officer. (2) While investigating against a Judge of a High Court or District Court, the Investigating Officer pursuant to subsection (1) may exercise the powers exercised by an investigating officer under the Prevention of Corruption Act, 2059. (3) If, during the investigation pursuant to subsection (2), the Investigating Officer finds that a case is to be filed against any Judge of a High Court or District Court on the charge of corruption and abuse of authority, he/she shall submit a report to that effect to the Judicial Council. (4) Based on the report received pursuant to subsection (3), if the Judicial Council deems it necessary to file a case, it shall decide on such matter and designate the Secretary of the Judicial Council or any gazetted officer of the Judicial Council to file a case on behalf of the Judicial Council in the court specified by the Government of Nepal pursuant to prevailing law for the proceedings and disposal of corruption-related cases. (5) Before making a decision to file a case pursuant to subsection (4), the Judicial Council may consult with the Attorney General on such matter. (6) In the case filed pursuant to this section, the defense shall be conducted by the Attorney General or a subordinate

government attorney. (7) If it appears that persons other than the Judge are also involved in the matter in which a case has been filed pursuant to this section, the Judicial Council shall send a letter to the concerned body to file a case against such person pursuant to prevailing law. 23. Automatic Suspension: In a situation where a Judge is automatically suspended under the Prevention of Corruption Act, 2059, or if a case is filed against any Judge of a High Court or District Court under prevailing law on the ground of bad conduct, such Judge shall be automatically suspended from his/her post from the date of filing of the case. 24. Termination of Suspension: If a Judge of a High Court or District Court is acquitted in a case filed under this Act, his/her suspension shall automatically terminate from the date of acquittal. 25.

Not Allowed to Perform Work: If an Inquiry Committee has been formed to conduct an inquiry against any Judge of a High Court or District Court, or if an investigation has commenced pursuant to Section 22, such Judge shall not be allowed to perform the work of his/her post until the conclusion of such proceedings. 26. Keeping in Abeyance: If the allegations against any Judge of a High Court or District Court appear to be baseless from the report pursuant to Section 17, 18 or 19, the Judicial Council shall keep such proceedings in abeyance, subject to legal action if evidence is found later, and inform the concerned Judge accordingly. 27. Transfer and Deputation of Judges: (1) Ordinarily, a Judge of a High Court or District Court who has not completed a term of two years in one court shall not be transferred. (2) While transferring a Judge of a High Court or District Court, ordinarily, a Judge working in a court in an accessible area shall be transferred to a court in a remote area and a Judge working in a court in a remote area shall be transferred to a court in an accessible area, ensuring experience in the Himalayan region, Hilly region, Terai region and Kathmandu Valley. (3) Ordinarily, a Judge of a High Court or District Court shall not be transferred to the same court more than once. (4) The Chief Justice may, on the recommendation of the Judicial Council, depute a Judge of one High Court as a Judge of another High Court as required. (5) The Chief Justice may, as required, depute a Judge of one District Court as a Judge of another District Court for a specified period. 28. Maintaining Personal Details: (1) The Judicial Council shall maintain and update the personal details (Service Roll) of Judges as prescribed. (2) For the purpose of subsection (1), the Judicial Council may request details from the Civil Records Office and other concerned bodies. (3) A person appointed to the post of Judge for the first time shall fill the personal details form (Service Roll) in the prescribed format and submit it to the Judicial Council within one month from the date of his/her appointment. (4) Other provisions relating to personal details of Judges shall be as prescribed. 29.

Submission of Property Details: (1) Members and Judges shall submit details of property held in their own name and in the name of their family members to the Judicial Council in the prescribed format within sixty days from the end of each fiscal year. (2) Notwithstanding anything contained in subsection (1), a Member or Judge appointed after the expiry of the period pursuant to subsection (1) shall submit the property details pursuant to subsection (1) to the Judicial Council within sixty days from the date of his/her appointment. (3) The property details pursuant to subsection (1) or (2) shall be kept confidential. (4) The Secretary of the Judicial Council shall prepare and submit to the Judicial Council the details of Judges who fail to submit property details within the period pursuant to subsection (1). (5) The Judicial Council shall impose a fine of five thousand rupees on a Judge who fails to submit property details within the period pursuant to subsection (1) and order him/her to submit the property details. (6) A Judge who fails to submit property details in compliance with the order of the Judicial Council pursuant to subsection (5) shall be deemed to have engaged in bad conduct under Section 11. 30. Preparation of Integrated Record: (1) The Judicial Council shall prepare and maintain an integrated record of each Judge containing the following details:- (a) Date of appointment to the post of Judge and date of retirement, details of his/her qualifications, experience and expertise, (b) If any complaint has been lodged against him/her, brief details of the decision made by the

Judicial Council on such complaint, (c) Details of any action taken against him/her pursuant to the Constitution and this Act, (d) Details of whether judgments or orders made by him/her have been affirmed or reversed by the higher court, (e) Numerical details of judgments and orders made by him/her in each court, (f) Other details as prescribed. (2) For the purpose of maintaining the record pursuant to subsection (1), the Judicial Council may create separate software and also use information technology as required. 31.

Giving Information of Leaving Office: (1) If a Judge is to retire on account of age, the Judicial Council shall give information thereof to the concerned Judge and body at least sixty days before his/her retirement. (2) If a Judge leaves office for reasons other than those mentioned in subsection (1), the Judicial Council shall immediately give information thereof to such Judge and the concerned body. (3) For the purpose of giving information of retirement pursuant to subsection (1), the Judicial Council shall calculate the age of a Judge based on the following basis and update his/her age accordingly, taking the age at which he/she first retires:- (a) The age resulting from the date of birth or year mentioned in the educational institution certificate submitted by him/her, (b) The age resulting from the date of birth or year mentioned in his/her citizenship certificate, (c) The age resulting from the date of birth or year mentioned in his/her personal details. (4) While calculating the age of a Judge pursuant to subsection (3), if the date of birth, year, month and date are mentioned in the educational qualification or citizenship certificate and personal details, and the date is not the same in all, his/her age shall be calculated according to the date on which he/she retires first. (5) Where only the year or era is mentioned in the educational qualification or citizenship certificate and personal details of a Judge, the date of birth shall be determined on the following basis:- (a) In the case of a citizenship certificate, based on the date of obtaining the certificate, (b) In the case of a certificate of educational qualification, based on the date of issuance of the certificate, (c) In the case of personal details, based on the date of initial appointment. (6) If only the year is mentioned in one certificate submitted by a Judge and the full date of birth is mentioned in another certificate, and there is a difference of up to one year between the dates of birth mentioned in such certificates, the one with the full date of birth shall be taken as the basis. (7) If the difference in the dates of birth mentioned in separate certificates pursuant to subsection (6) exceeds one year, the date of birth shall be determined pursuant to subsection (3) based on the certificate mentioning only the year. (8) The Council shall, within three months after the commencement of this section, ascertain the age of Judges pursuant to this section and manage the records. (9) Even if information has not been given pursuant to subsection (1), a Judge shall retire from such post after attaining the age of retirement. 32.

Removal from Office: (1) If it comes to notice that any person has been appointed to the post of Judge by concealing his/her qualification or disqualification, or if a Judge, while holding office, falls into the circumstances under clause (a), (e), (g), (j), (ñ) or (t) of Section 7, the Judicial Council shall recommend to the Chief Justice for immediate removal of such Judge from office. (2) Upon recommendation pursuant to subsection (1), the Chief Justice shall remove the Judge from office without delay. (3) If a Judge who was appointed to the post of Judge by concealing his/her qualification or disqualification is removed from office pursuant to subsection (2), such Judge shall not be entitled to any facility other than the amount of provident fund and insurance under prevailing federal law. (4) The Council shall, for the reason of concealing qualification or disqualification, send a letter to the concerned body to file a case against the Judge removed from office pursuant to subsection (2) for the offense of corruption under prevailing federal law. 33. **Functions, Duties and Powers of the Judicial Council:** In addition to the functions, duties and powers mentioned elsewhere in the Constitution and this Act, the other functions, duties and powers of the Judicial Council shall be as follows:- (a) Making recommendations or giving advice on matters relating to judicial administration, (b) Conducting or causing to conduct studies and researches on matters relating to judicial administration, (c) Giving necessary directives to the concerned body regarding curriculum and other matters relating to training

and orientation of Judges, (d) Framing and enforcing a code of conduct to be observed by Judges, (e) Performing other tasks as prescribed. 34. Secretariat of the Judicial Council: (1) There shall be a separate Secretariat of the Judicial Council. (2) The Secretariat of the Judicial Council shall be located in Kathmandu Valley. 35. Meeting of the Judicial Council: (1) A meeting of the Judicial Council shall be held at such date, time and place as the Chairperson may specify as required. (2) Notwithstanding anything contained in subsection (1), if two Members jointly make a written request to the Chairperson to call a meeting of the Judicial Council including the agenda, the Chairperson shall call the meeting as soon as possible. (3) The Secretary of the Judicial Council shall fix the date and time for the meeting of the Judicial Council and send a notice including the